

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                                                                             |                                                                                                                           |                                               |                                                       |                                               |                                 |
|---------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------|-------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Trevor Hackett                                                                                                             | Team:<br>Squad #08                                                                                                        | CCRB Case #:<br>202101651                     | <input checked="" type="checkbox"/> Force             | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                                                                                                             |                                                                                                                           |                                               | <input checked="" type="checkbox"/> Abuse             | <input checked="" type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Sunday, 03/14/2021 9:51 PM, Sunday,<br>03/14/2021 10:24 PM, Sunday, 03/14/2021<br>11:30 PM, Monday, 03/15/2021 11:48 AM | Location of Incident:<br>Front of § 87(2)(b) 41st<br>Precinct stationhouse; § 87(2)(b) Hospital;<br>Bronx Central Booking | 18 Mo. SOL<br>9/14/2022                       | Precinct:<br>42                                       |                                               |                                 |
| Date/Time CV Reported<br>Mon, 03/15/2021 8:37 AM                                                                                            | CV Reported At:<br>CCRB                                                                                                   | How CV Reported:<br>Call Processing<br>System | Date/Time Received at CCRB<br>Mon, 03/15/2021 8:37 AM |                                               |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |
|                    |      |              |
|                    |      |              |

| Subject Officer(s)        | Shield | TaxID  | Command |
|---------------------------|--------|--------|---------|
| 1. POM Michael Kalendarev | 06069  | 964581 | 041 PCT |
| 2. Officers               |        |        |         |
| 3. An officer             |        |        |         |
| 4. LT Jose Garcia         | 00000  | 943276 | 041 PCT |
| 5. SGT Alejandra Perez    | 05589  | 956158 | 052 PCT |
| 6. PO Ariel Perez         | 21839  | 962679 | 041 PCT |
| 7. PO Sandor Burgos       | 09388  | 968298 | 041 PCT |

| Witness Officer(s)   | Shield No | Tax No | Cmd Name |
|----------------------|-----------|--------|----------|
| 1. SGT Joan Pichardo | 04832     | 946118 | BX COURT |

| Officer(s)               | Allegation                                                                                                                              | Investigator Recommendation |
|--------------------------|-----------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A.SGT Alejandra Perez    | Force: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Sergeant Alejandra Perez used physical force against § 87(2)(b)          |                             |
| B.PO Ariel Perez         | Force: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Police Officer Ariel Perez used physical force against § 87(2)(b)        |                             |
| C.POM Michael Kalendarev | Force: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Police Officer Michael Kalendarev used physical force against § 87(2)(b) |                             |
| D.PO Ariel Perez         | Abuse: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Police Officer Ariel Perez threatened § 87(2)(b) with the use of force.  |                             |
| E.PO Ariel Perez         | Abuse: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Police Officer Ariel Perez threatened § 87(2)(b) with the use of force.  |                             |
| F.PO Ariel Perez         | Discourtesy: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Police Officer Ariel Perez spoke discourteously to § 87(2)(b)      |                             |

| Officer(s)               | Allegation                                                                                                                                        | Investigator Recommendation |
|--------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| G.PO Ariel Perez         | Force: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Police Officer Ariel Perez used physical force against § 87(2)(b)                  |                             |
| H.POM Michael Kalendarev | Force: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Police Officer Michael Kalendarev used physical force against § 87(2)(b)           |                             |
| I.PO Ariel Perez         | Abuse: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Police Officer Ariel Perez threatened § 87(2)(b) with the use of force.            |                             |
| J.PO Ariel Perez         | Discourtesy: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Police Officer Ariel Perez spoke discourteously to § 87(2)(b)                |                             |
| K.LT Jose Garcia         | Discourtesy: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Lieutenant Jose Garcia spoke discourteously to § 87(2)(b)                    |                             |
| L.LT Jose Garcia         | Discourtesy: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Lieutenant Jose Garcia spoke discourteously to § 87(2)(b)                    |                             |
| M.LT Jose Garcia         | Discourtesy: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Lieutenant Jose Garcia spoke discourteously to individuals.                  |                             |
| N.LT Jose Garcia         | Abuse: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Lieutenant Jose Garcia threatened to arrest § 87(2)(b)                             |                             |
| O.LT Jose Garcia         | Abuse: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Lieutenant Jose Garcia threatened to arrest § 87(2)(b)                             |                             |
| P.LT Jose Garcia         | Abuse: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Lieutenant Jose Garcia threatened to arrest individuals.                           |                             |
| Q. Officers              | Force: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Officers used physical force against § 87(2)(b)                                    |                             |
| R.POM Michael Kalendarev | Force: Police Officer Michael Kalendarev used physical force against § 87(2)(b)                                                                   |                             |
| S.PO Sandor Burgos       | Discourtesy: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Police Officer Sandor Burgos spoke discourteously to § 87(2)(b)              |                             |
| T. An officer            | Force: On March 14, 2021, in front of § 87(2)(b) in the Bronx, an officer used physical force against § 87(2)(b)                                  |                             |
| U. Officers              | Force: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Officers used physical force against § 87(2)(b) at the 41st Precinct Stationhouse. |                             |
| V.SGT Alejandra Perez    | Abuse: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Sergeant Alejandra Perez seized § 87(2)(b) property.                               |                             |
| W.PO Ariel Perez         | Force: On March 14, 2021, at § 87(2)(b) Hospital in the Bronx, Police Officer Ariel Perez used physical force against § 87(2)(b)                  |                             |
| X. An officer            | Force: On March 14, 2021, at § 87(2)(b) Hospital in the Bronx, an officer used physical force against § 87(2)(b)                                  |                             |

| Officer(s)        | Allegation                                                                                                                                                           | Investigator Recommendation |
|-------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| Y. PO Ariel Perez | Force: On March 14, 2021, at § 87(2)(b) Hospital in the Bronx, Police Officer Ariel Perez restricted § 87(2)(b) breathing.                                           |                             |
| Z. An officer     | Force: On March 14, 2021, at § 87(2)(b) Hospital in the Bronx, an officer restricted § 87(2)(b) breathing.                                                           |                             |
| 2A. Officers      | Discourtesy: On March 14, 2021, at § 87(2)(b) Hospital in the Bronx, officers spoke discourteously to § 87(2)(b)                                                     |                             |
| 2B. Officers      | Off. Language: On March 14, 2021, at § 87(2)(b) Hospital in the Bronx, officers made remarks to § 87(2)(b) based upon the perceived sexual orientation of § 87(2)(b) |                             |
| 2C. An officer    | Abuse: On March 15, 2021, at Bronx Central Booking, an officer made sexually suggestive remarks to § 87(2)(b)                                                        |                             |
| 2D. Officers      | Force: On March 15, 2021, at Bronx Central Booking, officers used physical force against § 87(2)(b)                                                                  |                             |
| 2E. An officer    | Abuse: On March 15, 2021, at Bronx Central Booking, an officer sexually assaulted § 87(2)(b)                                                                         |                             |
| 2F. An officer    | Abuse: On March 15, 2021, at Bronx Central Booking, officers inserted an object into § 87(2)(b) anus.                                                                |                             |

### Case Summary

On March 15, 2021, § 87(2)(b) filed this complaint on behalf of her son, § 87(2)(b) via the CCRB call processing system.

On March 14, 2021, at approximately 10:24 PM, § 87(2)(b) was walking home to § 87(2)(b) in the Bronx, when he was approached by Sgt. Alejandra Perez, PO Ariel Perez, and PO Michael Kalendarev of the 41<sup>st</sup> Precinct. The officers arrested § 87(2)(b) due to an incident two weeks earlier, in which § 87(2)(b) had fled the scene of a traffic stop. While handcuffing § 87(2)(b) the officers repeatedly punched and kicked § 87(2)(b) (**Allegations A, B, and C: Force, § 87(2)(g)**). During this time, PO Perez said to § 87(2)(b) “I’m going to deck you out,” and “I’m going to knee you in your fucking face” (**Allegations D and E: Abuse of Authority, § 87(2)(g)**). **Allegation F: Discourtesy, § 87(2)(g)** PO Perez and PO Kalendarev then allegedly dragged § 87(2)(b) from the entrance of his building to the sidewalk (**Allegation G and H: Force, § 87(2)(g)**). PO Perez then told § 87(2)(b) “I’m going to drag you, then I’m going to throw you into the fucking car” (**Allegation I: Abuse of Authority, § 87(2)(g)**). **Allegation J: Discourtesy, § 87(2)(g)** Lieutenant Jose Garcia, PO Sandor Burgos, and multiple other officers from the 41<sup>st</sup> Precinct arrived at the location. While officers were waiting on a police vehicle to transport § 87(2)(b) § 87(2)(b) § 87(2)(b) and a group of other individuals gathered around the officers. Lt. Garcia shouted at the crowd, “I’ll get a fucking bus. I’ll take everybody. Give me five minutes and I’ll get a fucking bus” (**Allegations K, L, M: Abuse of Authority, § 87(2)(g)**). **Allegations N, O, P: Discourtesy, § 87(2)(g)** Officers then allegedly began dragging § 87(2)(b) on the ground before picking him up and carrying him down the block (**Allegation Q: Force, § 87(2)(g)**). While carrying § 87(2)(b) PO Kalendarev allegedly dropped § 87(2)(b) on the ground (**Allegation R: Force, § 87(2)(g)**) and PO Burgos said to § 87(2)(b) “Yo, you’re fucking biting me. What the fuck are you doing, bro? You’re fucking biting me” (**Allegation S: Discourtesy, § 87(2)(g)**). Once officers reached the end of the block, an officer allegedly kned § 87(2)(b) while they were holding him off the ground (**Allegation T: Force, § 87(2)(g)**). Officers then allegedly threw § 87(2)(b) into the back of a police vehicle before transporting him back to the 41<sup>st</sup> Precinct Stationhouse (**Allegation U: Force, § 87(2)(g)**). Sgt. Perez then seized § 87(2)(b) car, which was double parked in front of the building (**Allegation V: Abuse of Authority, § 87(2)(g)**).

From the 41<sup>st</sup> Precinct stationhouse, § 87(2)(b) was transported to § 87(2)(b) Hospital Center in the Bronx. While at the hospital two officers allegedly began punching § 87(2)(b) while he was handcuffed to a gurney (**Allegation W: Force, § 87(2)(g)**). **Allegation X: Force, § 87(2)(g)** The officers then allegedly pulled § 87(2)(b) arms across his chest and handcuffed each of his hands to the opposite side of the gurney, causing § 87(2)(b) to have difficulty breathing (**Allegation Y: Force, § 87(2)(g)**). **Allegation Z: Force, § 87(2)(g)** While at the hospital, officers called § 87(2)(b) a “fucker” and a “cocksucker” (**Allegation AA: Discourtesy, § 87(2)(g)**). **Allegation AB: Offensive Language, § 87(2)(g)**

On March 15, 2021, § 87(2)(b) was lodged in a holding cell at Bronx Central Booking when an officer entered and said to § 87(2)(b) “Let me see your dick. Let me see your ass” (**Allegation AC: Abuse of Authority, § 87(2)(g)**). When § 87(2)(b) refused, multiple officers entered the holding cell and held him down and while doing so, § 87(2)(b) felt an officer reach under his clothing, squeeze his testicles, and insert a finger into his anus (**Allegation AD: Force, § 87(2)(g)**). **Allegations AE and AF: Abuse of Authority, § 87(2)(g)**

§ 87(2)(b) was arrested for reckless endangerment in association with a February 28, 2021, incident. § 87(2)(b) was also charged with criminal possession of a weapon due to two handguns

being recovered during a search incident to lawful arrest (**Board Review 01**).

Body Worn Camera (BWC) footage was obtained from PO Robert Silva, PO Gerardo Floresramirez, PO David Sferrazza, PO Enzo Morello, PO Alexander Abreu, PO Sandor Burgos, Lt. Jose Garcia, PO Michael Kalendarev, PO Ariel Perez, and Sgt. Alejandra Perez. The footage is located in IAs #54-68 (**Board Review 02-16**) and is summarized in IA #213 (**Board Review 17**). Security camera footage was obtained from § 87(2)(b) and is located in IAs #134-170 (**Board Review 18-54**) and is summarized in IA #176 (**Board Review 55**).

**Allegation A: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Sergeant Alejandra Perez used force against § 87(2)(b).**

**Allegation B: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Police Officer Ariel Perez used force against § 87(2)(b).**

**Allegation C: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Police Officer Michael Kalendarev used force against § 87(2)(b).**

**Allegation G: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Police Officer Ariel Perez used force against § 87(2)(b).**

**Allegation H: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Police Officer Michael Kalendarev used force against § 87(2)(b).**

**Allegation Q: On March 14, 2021, in front of § 87(2)(b) in the Bronx, officers used force against § 87(2)(b).**

**Allegation R: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Police Officer Michael Kalendarev used force against § 87(2)(b).**

**Allegation T: On March 14, 2021, in front of § 87(2)(b) in the Bronx, an officer used force against § 87(2)(b).**

**Allegation U: On March 14, 2021, in front of § 87(2)(b) in the Bronx, officers used force against § 87(2)(b).**

Security camera footage of the building courtyard shows, at 03:52, visible on the media player at the bottom of the screen, § 87(2)(b) and another individual enter the courtyard of § 87(2)(b) and walk towards the front door of the building. At 04:01, PO Perez, PO Kalendarev, and Sgt. Perez run toward § 87(2)(b) from behind. § 87(2)(b) turns, notices the officers and attempts to flee. PO Kalendarev grabs § 87(2)(b) and appears to be holding his arms from behind. PO Perez then grabs § 87(2)(b) left arm. Sgt. Perez then approaches § 87(2)(b) and all three officers appear to hold him in an attempt to handcuff him as § 87(2)(b) appears to be moving his body and attempting to pull away from the officers. At 05:00, PO Kalendarev and PO Perez, who are on either side of § 87(2)(b) are holding him from underneath his arms, walk § 87(2)(b) who tries to pull away from the officers, out of the courtyard. At no point do the officers punch or kick § 87(2)(b). At no point does any part of § 87(2)(b) body drag on the ground as officers escort him to the front of the building (**Board Review 36**).

BWC footage from PO Sfrazza shows, at 02:40, visible on the media player at the bottom of the screen, § 87(2)(b) tells officers numerous times that he is not going with them and is not going to comply with any orders they give him. At 02:58, PO Perez says to § 87(2)(b) “It’s not going to be difficult. There’s six of us. I’m going to drag you and I’m going to fucking throw you in the car” (Addressed in allegations I and J) At 03:08, § 87(2)(b) whose hands are behind his back, lifts his right arm and brings it forward. § 87(2)(b) hits PO Kalendarev, who is standing to the left of him, in the face while he does so. At 04:00, § 87(2)(b) again states that he is not going with the officers. PO Kalendarev can be heard telling him, “Are you biting me?” Lt. Garcia then says, “Don’t let him bite you.” At 04:27, § 87(2)(b) can be seen laying on the ground on his back with his legs in the air towards officers, which they are holding. He states, “Why are you hitting me.” An officer tells § 87(2)(b) that nobody is hitting him, which is consistent with the footage. At 07:00,

§ 87(2)(b) attempts to kick officers several times. At 08:45, Lt. Garcia and other officers begin carrying § 87(2)(b) down the block to the corner. § 87(2)(b) is lifted off the ground and is carried horizontally and face up. At 09:05, § 87(2)(b) kicks PO Kalendarev, who is carrying his legs, in the face. As a result, PO Kalendarev loses his balance and drops § 87(2)(b) and the two fall into a pile of trash on the sidewalk. BWC from PO Kalendarev shows, at 10:35, as the officers pick § 87(2)(b) up again, § 87(2)(b) bites PO Burgos' left shoulder. PO Burgos states, "You're fucking biting me. What the fuck are you doing bro?" (Addressed in allegation S) The officers continue carrying § 87(2)(b) to the corner, where they wait for a police vehicle (**Board Review 08**).

BWC footage from PO Perez, PO Kalendarev, Lt. Garcia, and PO Burgos show that while the officers are waiting on the corner for a police vehicle, they continue to hold § 87(2)(b) in the air by his arms and legs. No officer knees, kicks, or otherwise strikes § 87(2)(b). Once the police vehicle arrives, officers place § 87(2)(b) in the back and transport him back to the 41<sup>st</sup> Precinct stationhouse. BWC from PO Kalendarev shows that once at the stationhouse, § 87(2)(b) is procedurally searched at the front desk and is then taken back to the holding cell area. Officers then take § 87(2)(b) to the holding cell area. At 28:45, EMTs arrive and speak with § 87(2)(b). § 87(2)(b) tells the EMTs that he is having a heart attack, that he just had surgery on his gall bladder, and that he "smoked dust" (angel dust/PCP). The EMTs then take § 87(2)(b) to an ambulance and transport him to § 87(2)(b) Hospital (**Board Review 12**).

§ 87(2)(b) statement was inconsistent with the security camera footage. On March 14, 2021, at approximately 10:20 PM, in front of § 87(2)(b) apartment located at § 87(2)(b) in the Bronx, § 87(2)(b) was in his family's white Audi sedan with his girlfriend, whom he refused to identify. When they arrived at the building, § 87(2)(b) immediately exited the car, and his girlfriend went home. § 87(2)(b) refused to say where he had been prior to this point. When § 87(2)(b) got to the front door of his building, PO Perez, PO Kalendarev, and Sgt. Perez ran up behind him and immediately started punching and kicking him without saying anything or issuing any commands. § 87(2)(b) moved his body by stepping side to side to move away from the officers. § 87(2)(b) did not know which officer punched or kicked him and did not know how many times he was struck. § 87(2)(b) stated that he was punched in the face and punched and kicked in the body and legs. § 87(2)(b) could not provide further details about the force that was used against him at this specific moment because he was assaulted by officers numerous times over the next three days. As § 87(2)(b) was being struck, he pulled his arms in towards his chest and balled up his body. § 87(2)(b) did not make any other movements to protect himself. At this point, § 87(2)(b) did not know that he was dealing with police officers and thought that people were trying to rob him and take his jewelry. Officers handcuffed § 87(2)(b) and "dragged" him to the sidewalk in front of the building. After approximately five to ten minutes, officers dragged § 87(2)(b) down the street to the corner. § 87(2)(b) initially stated that officers dropped him as they were carrying him, though he later stated that he did not recall this. When asked if any officer kicked or kneed him once they reached the corner, § 87(2)(b) stated that they had, but could not provide any further details regarding this. § 87(2)(b) stated that officers "threw" him into the back a police vehicle. § 87(2)(b) could not provide any further details regarding how he was thrown into the police vehicle as he said that he was "blacked out" at this point. § 87(2)(b) denied that he resisted officers at any point during his arrest. § 87(2)(b) stated that he had a box cutter with him when he was arrested but denied possessing any other weapons (**Board Review 56**).

§ 87(2)(b) statement was inconsistent with video footage of the incident. § 87(2)(b) stated that one of § 87(2)(b) friends knocked on her door and informed her that officers were outside arresting § 87(2)(b). § 87(2)(b) went outside and observed numerous officers congregating at the front of her building. § 87(2)(b) could not see § 87(2)(b) as there were too many officers

in the way and she could not see over them. Approximately, 20 minutes after she came outside, two officers, who were holding onto § 87(2)(b) feet, pulled § 87(2)(b) approximately 10 feet down the sidewalk, causing his back to drag on the ground. Two other officers then picked § 87(2)(b) up by his arms and the four officers carried § 87(2)(b) down to the corner. While doing so, they dropped § 87(2)(b) on the ground, which § 87(2)(b) believed was intentional. Once at the corner, § 87(2)(b) observed an officer “knee” § 87(2)(b) twice in the back while officers were holding him. § 87(2)(b) did not allege that officers used any force to get § 87(2)(b) into the police vehicle once it arrived **(Board Review 57)**.

§ 87(2)(b) statement was somewhat consistent with the video footage. § 87(2)(b) stated § 87(2)(b) had a history of substance abuse, specifically with PCP and cocaine. § 87(2)(b) had seen § 87(2)(b) shortly before the incident, and his paranoid and irrational behavior led her to believe that he was under the influence of these substances at the time. § 87(2)(b) came downstairs and observed multiple officers standing outside their building surrounding § 87(2)(b). § 87(2)(b) stated that the officers briefly dragged § 87(2)(b) before picking him up and carrying him to the corner. The officers dropped § 87(2)(b) while they were carrying him, though § 87(2)(b) believed this was unintentional as § 87(2)(b) was kicking and moving his body as officers were trying to carry him. Once at the corner, officers continued to hold § 87(2)(b) off the ground. At one point, § 87(2)(b) observed an officer press his knee between § 87(2)(b) shoulder blades as the officers were holding him face up off the ground **(Board Review 58)**.

Sgt. Perez’ statement was generally consistent with the video footage. Sgt. Perez stated that two weeks prior to § 87(2)(b) arrest, she, PO Perez, and PO Kalendarev were involved in a separate incident involving § 87(2)(b) in which officers attempted to affect a traffic stop of § 87(2)(b) vehicle for a license plate violation and excessive window tints. § 87(2)(b) refused to stop his vehicle and officers needed to use their vehicles to “box him in.” § 87(2)(b) stopped his vehicle, but when officers approached, he drove away, almost hitting an officer with his vehicle. § 87(2)(b) was not arrested on this date and as a result, had an open complaint for reckless endangerment. On March 14, 2021, at approximately 9:10 p.m., a call regarding shots fired at § 87(2)(b) Street in the Bronx came over the radio. The officers responded to the location and met with the complainant, who approached the officers. Sgt. Perez did not recall the complainant’s name. The complainant stated that his girlfriend’s ex-boyfriend had appeared outside his building and fired several gunshots into the air from his vehicle. The complainant showed officers photos of the suspect and the vehicle, which Sgt. Perez recognized as § 87(2)(b). The complainant provided officers with § 87(2)(b) address. Sgt. Perez, PO Perez, and PO Kalendarev then drove to § 87(2)(b) apartment and when they arrived. They observed § 87(2)(b) vehicle double parked outside the building and saw § 87(2)(b) walking towards the front entrance of the building. Sgt. Perez and the other officers approached § 87(2)(b) in the courtyard with the intention of arresting him for his open complaint for reckless endangerment. Sgt. Perez denied that she, or any officer used any of the alleged force against § 87(2)(b) **(Board Review 59)**.

Statements from Lt. Garcia and PO Perez were generally consistent with Sgt. Perez’ as well as the video footage and denied that officers punched, kicked, kneed, dragged, threw, or otherwise used force against § 87(2)(b) during the incident **(Board Review 60, 61)**.

§ 87(2)(b) arrest report was consistent with officers’ statements that he was arrested for reckless endangerment associated with an incident which occurred on February 28, 2021, in which he fled from officers during a traffic stop. § 87(2)(b) was also charged with possession of a firearm as two firearms were recovered during a search incident to lawful arrest **(Board Review 01)**. BWC footage from PO Kalendarev captures a portion of the February 28<sup>th</sup> incident, and shows a vehicle,

which appears to match § 87(2)(b) fleeing the scene of a traffic stop (**Board Review 15**).

Security camera footage from the courtyard shows that the physical contact between § 87(2)(b) and PO Perez, PO Kalendarev, and Sgt. Perez was limited to officers holding onto § 87(2)(b) arms and pulling them behind his back to handcuff him. At no point do officers punch, kick, or otherwise strike § 87(2)(b) as alleged. Furthermore, BWC shows that § 87(2)(b) is not dragged on the ground at any point during his arrest. PO Kalendarev does drop § 87(2)(b) on the ground while officers are carrying him down the block to a police vehicle. This, however, was not a deliberate action by PO Kalendarev, and instead was the result of § 87(2)(b) kicking PO Kalendarev in the face, which caused him to lose his balance and fall. Once at the end of the block, BWC footage from PO Perez, PO Kalendarev, Lt. Garcia, and PO Burgos shows that no officer knees or otherwise strikes § 87(2)(b) in the back and that no officer throws or uses any force to get § 87(2)(b) into the police vehicle. Despite § 87(2)(b) extreme resistance, which included punching, kicking, and biting officers, video evidence confirms that no officer used any force alleged by § 87(2)(b) § 87(2)(b) or § 87(2)(b) § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

**Allegation D: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Police Officer Ariel Perez threatened § 87(2)(b) with the use of force.**

**Allegation E: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Police Officer Ariel Perez threatened § 87(2)(b) with the use of force.**

**Allegation F: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Police Officer Ariel Perez spoke discourteously to § 87(2)(b).**

**Allegation I: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Police Officer Ariel Perez threatened § 87(2)(b) with the use of force.**

**Allegation J: On March 14, 2021, in front of § 87(2)(b) in the Bronx, Police Officer Ariel Perez spoke discourteously to § 87(2)(b).**

These allegations were captured on BWC and were not alleged by any civilian in the case.

BWC from PO Perez captures the officers' initial encounter with § 87(2)(b) in the courtyard of his building. The footage shows, beginning at 01:00, that while PO Perez, PO Kalendarev, and Sgt. Perez struggle to handcuff § 87(2)(b) PO Perez can be heard saying "I'm going to deck you out." At 01:22, as the struggle continues, PO Perez also says, "I'm going to knee you in the fucking face." PO Perez also orders § 87(2)(b) to let go of him, though it is unclear specifically what he is referring to. It takes officers approximately 60 seconds to handcuff § 87(2)(b) § 87(2)(b) is then walked to the front of the building where he is searched by PO Kalendarev and PO Perez (the investigation determined that this search was incident to lawful arrest) before he is told by Sgt. Perez that he is being taken to the stationhouse. At 04:48, § 87(2)(b) repeatedly tells officers to let him go and that he is not going to go with them. PO Perez says to § 87(2)(b) "It's not going to be difficult. There's six of us. I'm going to drag you and I'm going to fucking throw you in the car" (**Board Review 13**)

PO Perez did not recall making any threats to use force against § 87(2)(b) or using any profanity towards him, though after reviewing his BWC footage, he acknowledged doing so. PO Perez stated that when officers approached § 87(2)(b) and attempted to handcuff him, § 87(2)(b) began screaming, flailing his arms, and attempting to bite the officers. § 87(2)(b) did not bite PO Perez, though he believed that he did bite PO Kalendarev's arm. PO Perez did not believe that PO Kalendarev sustained any injuries as a result. § 87(2)(b) grabbed PO Perez' hand while he was attempting to handcuff him and PO Perez ordered § 87(2)(b) to let go. After reviewing BWC footage of his comments, PO Perez stated that he made these remarks to § 87(2)(b) "in the heat of



the moment” and to get him to stop resisting and become compliant (**Board Review 61**).

Security camera footage is unclear whether § 87(2)(b) bit or attempted to bite any officer while they were attempting to handcuff him. After § 87(2)(b) is handcuffed, however, BWC footage from PO Sfrazza captures PO Kalendarev asking § 87(2)(b) if he is biting him, and Lt. Garcia telling PO Kalendarev not to let § 87(2)(b) bite him (**Board Review 08**). BWC footage from PO Kalendarev also shows, at 10:35, § 87(2)(b) biting PO Burgos as officers are carrying him down the block (**Board Review 12**). Additionally, medical records from § 87(2)(b) admission to § 87(2)(b) Hospital note that he bit an unidentified officer while there (**Board Review 62**).

Patrol Guide Procedure 221-01 states that force may be used when it is reasonable to ensure the safety of a member of service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances (**Board Review 63**). NYPD Patrol Guide, Procedure 200-02 requires that officers render their services with civility and respect (**Board Review 65**).

An officer’s use of an impolite word during a stressful street encounter where that officer is attempting to gain control of the situation does not constitute misconduct (DAO-DCT Case #201818951) (**Board Review 64**).

Security camera footage shows that when approached by officers, § 87(2)(b) resists arrest by first attempting to run, then refusing to give officers his hands when they grab him. Although video footage is inconclusive as to whether § 87(2)(b) bit, or was attempting to bite PO Kalendarev, Sgt. Perez, or PO Perez as they were trying to handcuff him, BWC footage does show that § 87(2)(b) bites PO Kalendarev’s leg shortly after being handcuffed. BWC footage and § 87(2)(b) hospital records show that § 87(2)(b) bit two other officers that evening. The investigation therefore credits PO Perez’s version of events, that § 87(2)(b) was attempting to bite officers as they were trying to handcuff him. § 87(2)(g)

§ 87(2)(g)

PO Perez’s remark, that he would “drag § 87(2)(b) and throw him into the fucking car,” was made after § 87(2)(b) was already handcuffed and was being held in front of the building by PO Kalendarev. PO Perez stated that the use of profanity in this remark was made “in the heat of the moment.” § 87(2)(g)

that § 87(2)(b) was restrained at this point. § 87(2)(g)

**Allegation K – On March 14, 2021, in front of § 87(2)(b) in the Bronx, Lieutenant Jose Garcia spoke discourteously to § 87(2)(b).**

**Allegation L – On March 14, 2021, in front of § 87(2)(b) in the Bronx, Lieutenant Jose Garcia spoke discourteously to § 87(2)(b).**

**Allegation M – On March 14, 2021, in front of § 87(2)(b) in the Bronx, Lieutenant Jose Garcia spoke discourteously to individuals.**

**Allegation N – On March 14, 2021, in front of § 87(2)(b) in the Bronx, Lieutenant Jose Garcia threatened to arrest § 87(2)(b).**

**Allegation O – On March 14, 2021, in front of § 87(2)(b) in the Bronx, Lieutenant Jose Garcia threatened to arrest § 87(2)(b)**

**Allegation P – On March 14, 2021, in front of § 87(2)(b) in the Bronx, Lieutenant Jose Garcia threatened to arrest individuals.**

**Allegation S – On March 14, 2021, in front of § 87(2)(b) in the Bronx, Police Officer Sandor Burgos Spoke discourteously to § 87(2)(b).**

BWC footage from Lt. Garcia shows, at 03:35, visible on the media player at the bottom of the screen, § 87(2)(b) is standing at the front of the building with officers while they wait for a police vehicle with a partition. § 87(2)(b) pulls one of his hands out of the handcuffs and begins trying to pull away while repeatedly screaming for the officers to get off him. § 87(2)(b) is re-cuffed and officers seat him on the sidewalk. At 05:30, as § 87(2)(b) continues to scream, two men walk outside the building with a large dog and ask the officers what is happening. Lt. Garcia states that § 87(2)(b) was arrested and is now “acting up” and that the officers are not doing anything to him. The man repeatedly tells § 87(2)(b) to stand up and Lt. Garcia tells the man that § 87(2)(b) is not going to stand up. Additional individuals begin coming outside to watch the incident. At 07:25, § 87(2)(b) comes outside, approaches the officers standing around § 87(2)(b) and identifies herself. Another woman quickly approaches the officers and while standing several inches from them, repeatedly demands that they “get off” § 87(2)(b). Sgt. Perez orders the woman and several other individuals to back up. There are seven officers on scene at this time. At 8:31, an officer can be heard saying about § 87(2)(b) “He’s got it right here.” Lt. Garcia asks the officers if they searched § 87(2)(b). Lt. Garcia then faces the crowd of approximately 15 people, begins to tell them that they just recovered a gun from § 87(2)(b) then states, “You know what? Everybody move! Everybody go inside or you’re going to get arrested right now. I’ll get a fucking bus. I’ll take everybody. Give me five minutes, I’ll take a fucking bus.” The crowd begins to walk back to the building. At 09:15, Lt. Garcia orders officers to pick § 87(2)(b) up and carry him down the block **(Board Review 11)**.

BWC from Sgt. Perez captures a separate angle of officers interacting with the crowd. At 09:20, as individuals continue to arrive in front of the building, Sgt. Perez orders them to step back as several individuals are less than three feet from officers and § 87(2)(b). Sgt. Perez and two other officers then turn away from § 87(2)(b) and face the crowd to separate them from § 87(2)(b). Individuals in the crowd can be heard shouting, though it is unclear what they are saying as a dog is barking loudly. At 09:40, a woman appears to be trying to walk around the officers to record § 87(2)(b). Sgt. Perez tells the woman she can record but she needs to move back but the woman does not comply. At 09:55, a man attempts to walk past Sgt. Perez, but Sgt. Perez stops him and orders him to back up, which he does **(Board Review 14)**.

BWC from PO Kalendarev covers the period in time in which officers are carrying § 87(2)(b) down the street. At 10:30, § 87(2)(b) can be seen biting PO Burgos, who says, “Yo, you’re fucking biting me. What the fuck are you doing, bro? You’re fucking biting me.” The officers continue to carry § 87(2)(b) to the end of the block where he is ultimately placed in a patrol vehicle and transported back to the stationhouse **(Board Review 12)**.

§ 87(2)(b) statement was generally consistent with the BWC footage. She stated that § 87(2)(b) was laying on the sidewalk when she arrived, and that he was kicking and “wiggling” his body. § 87(2)(b) stated that there were several other civilians watching the incident, and people in the group were shouting at officers to let § 87(2)(b) go. § 87(2)(b) stated that officers did not issue any orders for members of the crowd to back up **(Board Review 57)**.

§ 87(2)(b) statement was generally consistent with the BWC. § 87(2)(b) stated that members of the group were standing approximately three to four feet away from officers and § 87(2)(b).

§ 87(2)(b) were shouting insults at officers and telling them to let § 87(2)(b) go (**Board Review 58**).

Lt. Garcia's statement was generally consistent with the BWC footage. Lt. Garcia stated that he and other officers issued multiple commands to the group of individuals to back up, but they did not comply. As officers were ordering the crowd to back up, a firearm was recovered from § 87(2)(b). Lt. Garcia acknowledged telling the crowd that if they did not leave, they would be arrested. He did so because at this point, he felt the situation was becoming too dangerous. The threat of arrest was directed to the entire group as a warning to give officers their space. Lt. Garcia stated that individuals could have been arrested for obstruction of governmental administration for not complying with officer orders to back up, and for urging § 87(2)(b) to not comply with officers. After reviewing BWC footage, Lt. Garcia acknowledged using profanity towards the crowd when he threatened to arrest them. Lt. Garcia stated the profanity was unintentional and was made "in the heat of the moment." Lt. Garcia did not recall any officers using profanity towards § 87(2)(b) during the incident (**Board Review 60**).

PO Perez and Sgt. Perez did not specifically recall the interactions between officers and the crowd. PO Perez stated that a crowd of individuals watching § 87(2)(b) arrest were shouting insults at the officers and telling them to let him go. PO Perez did not recall the officers' interactions with the crowd as his focus was on § 87(2)(b). Sgt. Perez did not recall issuing any commands for individuals to move back but stated that other officers did so. PO Perez and Sgt. Perez did not recall any other officers using profanity towards § 87(2)(b) during the incident (**Board Review 59, 61**).

New York Penal Law, 195.05, states that a person is guilty of obstructing governmental administration when he intentionally obstructs, impairs or perverts the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function, by means of intimidation, physical force or interference, or by means of any independently unlawful act (**Board Review 66**).

An officer's use of an impolite word during a stressful street encounter where that officer is attempting to gain control of the situation does not constitute misconduct (DAO-DCT Case #201818951) (**Board Review 64**).

As a crowd formed to observe the incident, § 87(2)(b) was resisting officers by punching, kicking, biting, and attempting to pull away from officers. Officer and civilian statements were generally consistent with the BWC footage, which showed a group of approximately 15 individuals, several of whom were standing within three feet of the officers, shouting at the seven officers on scene while they were waiting for a police vehicle to transport § 87(2)(b). During this time, at least one individual was urging § 87(2)(b) to stand up and not comply with the officers while another individual attempted to walk past Sgt. Perez after she had ordered individuals to move back, which they did not do. Given § 87(2)(b) level of resistance, the fact that he had previously slipped one of his hands out of his handcuffs, and that a firearm was recovered from his person despite previously being searched, officers did not have complete control of the situation, which was becoming increasingly volatile by onlookers, who were crowding the officers, refusing to move back, and urging § 87(2)(b) to stand up. Given that the crowd was interfering with officers gaining control of an already dangerous situation, § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) continued to resist officers as they carried him down the street to the police vehicle,

during which time BWC footage captures § 87(2)(b) biting PO Burgos' shoulder. § 87(2)(g)

**Allegation V – Abuse of Authority: Sergeant Alejandra Perez seized § 87(2)(b) vehicle.**

It is undisputed that officers seized § 87(2)(b) vehicle during the incident, which § 87(2)(b) and § 87(2)(b) stated was unjustified.

Sgt. Perez stated that § 87(2)(b) vehicle was seized as he was arrested for the incident two weeks prior in which he used the vehicle to flee officers during a traffic stop (**Board Review 59**).

Property voucher § 87(2)(b) was obtained and listed § 87(2)(b) vehicle along with his other property as invoiced on the day his arrest (**Board Review 67**).

NYPD Patrol Guide Procedure 218- 01, states officers must voucher a civilian's property subject to an arrest (**Board Review 68**).

As § 87(2)(b) was arrested for an incident involving his vehicle, it follows that his vehicle would need to be vouchered. § 87(2)(g)

**Allegation W – Force: On March 14, 2021, at § 87(2)(b) Hospital in the Bronx, Police Officer Ariel Perez used physical force against § 87(2)(b)**

**Allegation X – Force: On March 14, 2021, at § 87(2)(b) Hospital in the Bronx, an officer used physical force against § 87(2)(b)**

**Allegation Y – Force: On March 14, 2021, at § 87(2)(b) Hospital in the Bronx, Police Officer Ariel Perez restricted § 87(2)(b) breathing.**

**Allegation Z – Force: On March 14, 2021, at § 87(2)(b) Hospital in the Bronx, a police officer restricted § 87(2)(b) breathing.**

**Allegation AA – Discourtesy: On March 14, 2021, at § 87(2)(b) Hospital in the Bronx, an officer spoke discourteously to § 87(2)(b)**

**Allegation AB – Offensive Language: On March 14, 2021, at § 87(2)(b) Hospital in the Bronx, officers made remarks to § 87(2)(b) based upon the perceived sexual orientation of § 87(2)(b)**

BWC from PO Kalendarev, shows at 26:49, § 87(2)(b) is evaluated by EMS at the 41<sup>st</sup> precinct stationhouse and tells EMTs that he can't breathe, can't feel his legs, is covid positive, and has smoked angel dust. § 87(2)(b) is subsequently transported to § 87(2)(b) Hospital. There is no video footage which captures the events after § 87(2)(b) leaves the stationhouse (**Board Review 12**).

§ 87(2)(b) stated that while at § 87(2)(b) hospital, he was handcuffed to a bed and was taken to a room where he waited to have x-rays taken. While at the hospital, two officers, who § 87(2)(b) could only describe as Hispanic men, began punching him around his eyes, nose, and jaw. The officers then called him a "cocksucker" and a "fucker." § 87(2)(b) could not say which officer made these remarks. The officers crossed § 87(2)(b) arms over his chest and handcuffed each hand to the opposite side of the bed. § 87(2)(b) position caused him to have difficulty breathing. When § 87(2)(b) told the officers this, they responded, "You should have thought about that before." § 87(2)(b) stated that he was "taking the punches" from the officers but did not attempt to fight back or resist the officers. § 87(2)(b) could not provide any further details about his interactions with officers at the hospital. § 87(2)(b) was ultimately unsure of how long he was at § 87(2)(b) Hospital or the specific time in which these allegations occurred (**Board Review 56**).

PO Perez acknowledged that he accompanied § 87(2)(b) to the hospital and said that he was the only officer there. PO Perez waited with § 87(2)(b) to be seen by a doctor for approximately one to two hours before he was relieved by another officer, whom he could not recall. PO Perez could not specifically recall where in the hospital he was with § 87(2)(b) § 87(2)(b) who was handcuffed to a gurney and wearing leg shackles was shouting at PO Perez the entire time they were at the hospital. PO Perez stated that by this point, § 87(2)(b) had been yelling at him and other officers since they first approached him so he did not pay attention to what § 87(2)(b) was saying and did not respond to the shouting in any way. PO Perez denied that he or any other officer punched § 87(2)(b) re-handcuffed him to the gurney, or took any action that would have restricted § 87(2)(b) breathing. PO Perez denied that he, or any other officer called § 87(2)(b) a “fucker” or a “cocksucker.” Following the incident, PO Perez heard that § 87(2)(b) had bitten an officer and was spitting at hospital staff. He did not recall who told him this or which officer was present at the time. § 87(2)(b) did not try to bite PO Perez while he was at the hospital (**Board Review 61**).

Neither Sgt. Perez, nor Lt. Garcia knew which officers were present with § 87(2)(b) at the hospital (**Board Review 59, 60**).

§ 87(2)(b) medical records from § 87(2)(b) Hospital do not mention any use of force by officers at the hospital. A progress report prepared by Dr. § 87(2)(b) describes § 87(2)(b) demeanor as irritable, angry, and aggressive towards hospital staff as well as other patients. The report notes that § 87(2)(b) threatened to hit a doctor and spit at hospital staff if he did not get a gurney. § 87(2)(b) exposed his buttocks to the hospital staff and began punching a window/wall. § 87(2)(b) ultimately needed to be moved to a separate area of the hospital due to safety concerns over his threatening behavior. § 87(2)(b) was discharged § 87(2)(b) but returned to § 87(2)(b) Hospital § 87(2)(b) (**Board Review 62**).

§ 87(2)(b) was unsure of how long he was at the hospital and could not provide a specific time frame during which these allegations occurred. § 87(2)(b) stated that the subject officers were Hispanic men but could not provide any further details to identify the officers. Furthermore, § 87(2)(b) could not attribute the alleged discourteous and offensive remarks to a specific officer. PO Perez acknowledged being at the hospital with § 87(2)(b) for one to two hours on the evening of his arrest. PO Perez stated that he was the only officer with § 87(2)(b) during this time and denied using any force against § 87(2)(b) restricting his breathing, or making any discourteous or offensive remarks towards § 87(2)(b). Neither PO Perez, Sgt. Perez, or Lt. Garcia had any knowledge of which officers were present with § 87(2)(b) at the hospital. § 87(2)(b) medical records indicate that he first arrived at § 87(2)(b) Hospital § 87(2)(b) and was ultimately discharged on § 87(2)(b). As such, several different officers would have been present with him at the hospital during this time.

§ 87(2)(g)

§ 87(2)(b) stated that officers called him a “fucker” and a “cocksucker” while at the hospital. However, § 87(2)(b) was unable to attribute these remarks to a specific officer and was not able to provide a time frame for when these comments were made. § 87(2)(g)



**Allegation AC – Abuse of Authority: On March 15, 2021, at Bronx Central Booking, an officer made sexually suggestive remarks to § 87(2)(b)**

**Allegation AD – Force: On March 15, 2021, at Bronx Central Booking, officers used force against § 87(2)(b)**

**Allegation AE – Abuse of Authority: On March 15, 2021, at Bronx Central Booking, an officer inserted an object into § 87(2)(b) anus.**

**Allegation AF – Abuse of Authority: On March 15, 2021, at Bronx Central Booking, an officer sexually assaulted § 87(2)(b)**

§ 87(2)(b) stated that on March 15, 2021, at approximately 11:38 AM, he was escorted to Bronx Central Booking by two officers from the 41st Precinct, whom § 87(2)(b) could not describe. § 87(2)(b) was processed and taken upstairs and lodged alone in a holding cell with no cameras. § 87(2)(b) spoke to another inmate in a separate cell but did not recall what the conversation was about. After approximately one hour, “PO Lawson” entered § 87(2)(b) cell with a broom and an industrial sweeper, which confused § 87(2)(b) because his cell was clean. § 87(2)(b) was able to recall PO Lawson’s name because he saw it on his shield as soon as he entered the cell. § 87(2)(b) did not recall interacting with PO Lawson on any prior occasions. PO Lawson began sweeping the cell. § 87(2)(b) did not speak with him as he was focused on speaking with the judge. PO Lawson said to § 87(2)(b) “Let me see your dick,” and “Let me see your ass.” PO Lawson did not say anything prior to this and did not give § 87(2)(b) any other commands. § 87(2)(b) refused and said he is not a “faggot.” Numerous officers rushed into the cell, “restrained” § 87(2)(b) and placed him face down on the cell bench. § 87(2)(b) was unable to provide further details regarding how he was restrained and placed on the bench. The officers began beating § 87(2)(b). While § 87(2)(b) was face down on the bench, he felt punches in the back of the head and kicks “all over the body.” § 87(2)(b) felt an officer’s finger touch his anus. § 87(2)(b) stated this contact was made underneath his underwear as officers were able to reach into his pants because he was not wearing a belt. § 87(2)(b) was unsure if the officer’s finger penetrated his anus as he was trying to clench it closed. § 87(2)(b) described this contact as quick. An officer reached into § 87(2)(b) pants, underneath his underwear, quickly grabbed his testicles, and squeezed them, which caused § 87(2)(b) to feel sick. § 87(2)(b) believed that the officers’ contact with his genitals was intentional. After approximately one to two minutes, the interaction ended when officers quickly ran out of the cell. No other officer spoke to § 87(2)(b) while in the cell. Several hours later, § 87(2)(b) was taken to see the judge, then was returned to a different cell where he was lodged alone. § 87(2)(b) stated that after seeing the judge he was also punched and kicked by several corrections officers while he was in DOC custody. § 87(2)(b) was then transported to § 87(2)(b) Hospital. § 87(2)(b) stated initially stated that he was only lodged in one holding cell prior to seeing the judge, but later said that he was lodged in three to five cells while at central booking. § 87(2)(b) stated that he “blacked out” at points during his arrest and the following days and was unable to provide a clear timeline of his whereabouts (**Board Review 56**).

The Processing Supervisor at Bronx Central Booking, Sgt. Joan Pichardo, was interviewed and stated he had no recollection of this incident. Sgt. Pichardo denied interacting with § 87(2)(b) on the incident date, and denied that he, or any other officers used force against § 87(2)(b). § 87(2)(b) ordered § 87(2)(b) to expose his genitals, grabbed his testicles, or inserted a finger into his anus. Sgt. Pichardo stated that it would be uncommon for an officer to clean a holding cell while a prisoner was inside unless there was an exceptional circumstance, such as a prisoner vomiting in the cell. Sgt. Pichardo is able to see all of the holding cells from the desk where he is stationed (**Board**

## Review 69).

The Bronx Central Booking shows that § 87(2)(b) arrived at Bronx Central Booking at 11:38 AM **(Board Review 70)**. A review of the Bronx Central Booking Roll Call yielded negative results for any officer with the last name “Lawson” on the incident date **(Board Review 71)**. A CTS search yielded negative results for any officer named “Lawson” assigned to this command. Command log entries for the day do not have any entries associated with this incident **(Board Review 72)**.

Stationhouse footage from the Bronx Central Booking holding cell area shows, on March 15, 2021, at approximately 12:07 PM, reflected as the 51:50 mark on the media player, § 87(2)(b) is lodged in a holding cell with another prisoner. At 53:41, § 87(2)(b) then exits the holding cell but is returned at 01:09:12. § 87(2)(b) remains in the cell until he is removed at 01:20:49. At no point does any officer make physical contact with § 87(2)(b) inside the cell, let alone enter the cell. There is no physical contact between § 87(2)(b) and the other prisoner inside the cell. The footage does not capture the officers who lodge and remove § 87(2)(b) from the cell **(Board Review 73)**.

Medical Records obtained from § 87(2)(b) Hospital show § 87(2)(b) § 87(2)(b) A visual examination showed no visualized signs of trauma from the alleged sexual assault. As per EMS, § 87(2)(b) was transferred to the hospital due to “chest pain/facial injuries.” The Emergency Triage Flowsheet notes that § 87(2)(b) who was in the custody of the Department of Corrections, was admitted with “facial bruising/dried blood” and that § 87(2)(b) stated he was “beat by police officers yesterday and today.” § 87(2)(b) also stated that on § 87(2)(b) a corrections officer came into his cell and sexually assaulted him. Specifically, the corrections officer “pinched his dick and shoved a finger up his butt.” (p. 10) X-Ray results show that § 87(2)(b) had a nasal fracture as well as “L3 and L4 transverse process fractures” **(Board Review 74)**.

Though it was not mentioned in his statement, BWC captures § 87(2)(b) making similar accusations of sexual misconduct to officers at the 41<sup>st</sup> Precinct Stationhouse immediately after his arrest on March 14, 2021. BWC from PO Kalendarev shows PO Morello and PO Kalendarev holding § 87(2)(b) at the front desk of the stationhouse as he continues to resist by screaming, kicking and attempting to pull away from officers. At 09:18, § 87(2)(b) pants are sagging as he is being searched and PO Morello pulls his pants back up. § 87(2)(b) accuses PO Morello and PO Kalendarev of “sexually harassing” him, “grabbing [his] dick. Grabbing [his] ass” as well as putting their “fingers and dicks in his ass”. § 87(2)(b) repeatedly tells an officer to stop touching his “dick”. At no point does any of this occur. § 87(2)(b) medical records from § 87(2)(b) Hospital on § 87(2)(b) note that § 87(2)(b) informed hospital staff that he was sexually assaulted by officers “in prison.”

The investigation was unable to find any evidence of a “PO Lawson” working at central booking at the time of the incident. The intake supervisor, Sgt. Pichardo, denied that he, or any other officer committed the alleged misconduct and denied he had any interaction with § 87(2)(b) on the incident date. § 87(2)(b) account of the events during and after his arrest have been extremely inaccurate. § 87(2)(b) initially stated he was sexually assaulted by NYPD officers in a Bronx Central Booking holding cell before seeing a judge. § 87(2)(b) stated that he was lodged alone in one holding cell during this time. Video footage from Bronx Central Booking captures § 87(2)(b) lodged in one cell with another prisoner and shows that no officer enters the cell while § 87(2)(b) is there. § 87(2)(b) would later say that he was lodged in multiple holding cells while at Central Booking. § 87(2)(b) medical records from § 87(2)(b) hospital note § 87(2)(b) sexual assault allegations, though he attributed these actions to corrections officers and not NYPD officers. BWC footage and medical records from § 87(2)(b) Hospital show that § 87(2)(b) made similar accusations

against officers during his arrest. However, BWC footage confirms that none of this alleged sexual misconduct occurred at the time in which § 87(2)(b) alleged it occurred. § 87(2)(b) by his own admission, as well as his hospital records show that he was under the influence of PCP at the time his arrest. § 87(2)(b) stated that he “blacked out” at points during his arrest and over the next several days and was unable to give a clear timeline of events.

None of the sexual assault allegations at the time and place alleged by § 87(2)(b) Due to § 87(2)(b) largely inaccurate account of events and the timeframe in which they occurred, the investigation was unable to determine exactly when and where this alleged misconduct occurred, much less identify any officers that may have been involved. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

### Civilian and Officer CCRB Histories

- § 87(2)(b)
- § 87(2)(b)
- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 78**).
- PO Perez has been a member of service for 5 years and has been a subject in 4 additional CCRB complaints and 12 additional allegations, none of which were substantiated. § 87(2)(g)
- PO Kalendarev has been a member-of-service for 4 years and this is the first CCRB complaint to which he has been a subject.
- PO Burgos has been a member of service for two years and has been a subject in 3 additional CCRB complaints and 8 additional allegations, one of which was substantiated:
  - #202007635 involved a substantiated of property damage. The Board recommended command discipline B. The NYPD has not imposed any discipline. § 87(2)(g)
- Sgt. Perez has been a member of service for 8 years and has been a subject in five additional CCRB complaints and 12 additional allegations, of which 2 were substantiated.:
  - #201707222 involved two substantiated allegations of a search (of person) against Sgt. Perez. The Board recommended Command Lvl. 1 instructions and the NYPD imposed formalized training.
- Lt. Garcia has been a member of service for 15 years and has been a subject in 10 additional CCRB cases and 19 additional allegations, of which 2 were substantiated:
  - #200810343 involved a substantiated allegation of a discourtesy (word) against Lt. Garcia. The Board recommended Command Discipline B, which the NYPD imposed.
  - #202007713 involved a substantiated allegation of a discourtesy (word) against Lt. Garcia. The Board recommended Command Discipline A, which the NYPD imposed.

### Mediation, Civil, and Criminal Histories

- This case was not suitable for mediation.



- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[redacted]

Reviewer: \_\_\_\_\_

|           |                    |      |
|-----------|--------------------|------|
| Signature | Print Title & Name | Date |
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